

replaced a water line, a power line, and a sprinkler line in the vicinity of the TCE area. (*Id.* at ¶ 4.)

Thus, there is conflicting evidence with regard to the issue of whether the State used the TCE for construction purposes, excluded defendants from accessing and using the parcel, and removed any improvements from the parcel. At this point, it would be premature to make any final determination of whether the State's use of the TCE caused actual damage to defendants' actual intended use of the property that would warrant awarding severance damages or other damages for lost improvements, construction noise and vibration, etc. Therefore, the court intends to deny the motion to exclude defendants' expert's opinions regarding severance and other damages resulting from use of the TCE.

Finally, the State moves to exclude the defendants' experts' valuation because it is allegedly based on the false assumption that the property is 1.42 acres with 200 feet of frontage. The State contends that the property is now 0.03 acres smaller due to its acquisition of the parcels at issue in the prior *DSS* action, so the expert's valuation is based on incorrect data and should be excluded. The State also contends that the expert's valuation fails to take into account the existing construction activities that were ongoing as early as 2017, and for which defendants were already compensated by the judgment in the *DSS* action.

However, as discussed above, the State has not shown that Parkwood actually received any of the compensation from the prior action. Parkwood was not a party to the *DSS* action, nor is there any evidence that it was in privity with DSS at the time the judgment was entered in that action. As a result, the State has not established that Parkwood cannot seek damages related to any construction activities on the new TCE.

Also, to the extent that the State argues that defendants' expert's valuation is based on an incorrect assumption about the size of the affected parcel, defendants' expert has stated in his declaration in opposition to the motion that the difference in parcel size is insignificant and does not affect his estimate of damages. (Mason decl., ¶¶ 7.) The court agrees that the difference of 0.03 acres is too small to make a substantial difference in the valuation. Such a minor difference does not warrant excluding the expert's valuation at trial. Therefore, the court intends to deny the motion to exclude the valuation.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/03/26
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: ***Aguilar vs Bal***
Superior Court Case No. 21CECG03169

Hearing Date: August 5, 2026 (Dept. 501)

Motion: Petition to Compromise Minor's Claim

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

Tentative Ruling:

To deny, without prejudice. Petitioner must file an amended petition, with appropriate supporting papers and proposed orders, and obtain a new hearing date for consideration of the amended petition. (Super. Ct. Fresno County, Local Rules, rule 2.8.4.)

Explanation:

Petition submitted by Petitioner seeks approval for the compromise of minor claimant's claim resulting from a motor vehicle accident. However, the petition has two issues that need to be addressed before the settlement can be approved.

First, item 8.a. indicates Minor has recovered from her injuries. The court lacks any medical records to corroborate this assessment. The only medical record provided is from June 12, 2019 and Minor was suffering from her injuries at that time.

Second, item 12. is not filled out. Minor went to the hospital and the petition does not indicate how the bills were paid or if any money is owing.

Pursuant to California Rules of Court, Rule 3.1312 and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 08/03/26 .
(Judge's initials) (Date)